

		Plus, Plaintiff seems to suggest she is just adding DOE defendants and alter ego claims, however, Plaintiff is also attempting to add a 7th cause of action for Violation of California Civil Code Section 1950.5—which she fails to mention. Moreover, the Proposed Second Amended Complaint appears to relate to facts that occurred <i>after</i> the filing of the initial complaint on 8/29/2024. [Motion, Ex.A.] Therefore, a Supplemental Pleading may be more appropriate. [CCP § 464(a).] Finally, Attorney Rochlin’s declaration is deficient and does not comply with CRC, Rule 3.1324(b). Clerk to give notice.
8.	30-2025-01515534 Cheung vs. D’Ambra	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint 4. Order to Show Cause re: Appointment of Referee A first amended complaint having been filed, the Demurrer to Complaint and Motion to Strike Portions of Complaint are moot. The Case Management Conference and Order to Show Cause re: Appointment of Referee remain on calendar.
10.	30-2025-01517366 Gudino vs. Director of the Department of Motor Vehicles	1. Petition for Writ The hearing on Petitioner Julio Christian Gudino’s Petition for Writ of Mandate is <u>CONTINUED to October 1, 2026 at 1:30 p.m. in Department C34.</u> Petitioner is ordered to lodge physical media containing the exhibits referenced in ROA 33 (Petitioner’s Notice of Lodging) no later than September 18, 2026 (9 court days prior to the continued hearing date). A copy shall also be served on opposing counsel. The Court notes that Petitioner’s Notice of Lodging includes a <i>hyperlink</i>, which appears to be directed at a google drive folder. A hyperlink to a drive that is outside the control of the Court is insufficient for the purposes of creating a record, as the documents contained within the drive can be deleted, added or modified at any time. Clerk to give notice.
11.	30-2025-01476570 Nair vs. Mesias	1. Case Management Conference 2. Motion for Protective Order Defendants Mark Mesias, Joy Christine Martinez, Chrysalis Care I, LLC, Blue Wave Hospice Inc., Clearpath Foundation, Clearpath Holdings Corporation, Clearpath Management LLC, and Desert Valley Congregate Living Health Facility Inc. (“Defendants”) move for (1) a protective order to prevent the unwarranted disclosure of constitutionally protected financial information, (2) an order quashing or, alternatively, modifying the subpoenas issued by Plaintiffs to Goldman Sachs Bank USA, Citicorp North America, Inc., and JPMorgan Chase Bank, N.A., and (3) monetary sanctions of \$5,060.00 against Plaintiffs for persisting in seeking discovery that is outside the scope of permissible discovery and for employing discovery methods not in good faith.

		Pursuant to Code of Civil Procedure sections 1985.3 and 1987.1, the Motion to Quash the subpoenas at issue is GRANTED. The Court finds that the subpoenas issued are not reasonably particularized in that they seek financial information that is not relevant to the resolution of the issues presented in this case. (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 222 (1997), <i>as modified</i> (Mar. 7, 1997).) Plaintiffs did not oppose this motion and therefore proffered no evidence establishing otherwise. Based on the non-opposition, the Court may “deem [plaintiffs] to have abandoned the issues” or “claims” addressed in the moving papers. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants’ arguments presented in the motion. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, <i>as modified</i> (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) The Motion is GRANTED. Defendants’ request for sanctions is GRANTED in the reduced amount of \$1,500 (3 hours at \$500/hour). The Court sets an OSC re: Default for October 22, 2026 at 10:30 am in C34. No answers have been filed in this case. Defendants to give notice.
12.	30-2022-01296538 Burke vs. Grosse	1. Motion to Enforce Settlement 2. Order to Show Cause re: Dismissal on Settled Case Plaintiff Camille Burke (“Plaintiff”) moves for an order enforcing a settlement and release agreement between herself and defendant Michael Bradley (“Defendant”), entering judgment in favor of Plaintiff against Defendant, and awarding Plaintiff \$2,119.95 in costs and in attorney’s fees incurred in bringing this motion. Code of Civil Procedure section 664.6 provides: If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. The Settlement and Release Agreement provides that Defendant shall pay Plaintiff a total of \$20,000 with \$5,000 due within two weeks of all counsel receiving a fully executed version of the agreement and six payments of \$2,500 every 30 days thereafter. The Agreement further provides that the parties agree that the Court shall maintain jurisdiction of this matter to further the settlements reached to the fullest extent possible under Code of Civil Procedure section 664.6. Exhibit A to the Agreement provides that Plaintiff and Defendant agree that in the event of default and Defendant’s failure to cure within three business days, judgment shall be entered in favor of Plaintiff and against Defendant for